

HOUSE No. 4912

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, January 12, 2026.

The committee on Children, Families and Persons with Disabilities, to whom was referred the petition (accompanied by bill, House, No. 224) of Daniel M. Donahue relative to the establishment of an accessibility in the creative economy (ACE) grant program to be administered by the Office on Disability, reports recommending that the accompanying bill (House, No. 4912) ought to pass.

For the committee,

JAY D. LIVINGSTONE.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving accessibility in the creative economy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6 Section 186 of the General Laws is hereby amended by adding
2 the following section: -

3 Section 1 (a). There shall be established and set up on the books of the Commonwealth a
4 separate fund, upon passage of this legislation, to be known as the Accessibility in the Creative
5 Economy (ACE) grant program, to be administered by the Office on Disability for the purposes
6 of supporting capital improvements and projects to improve programmatic access and remove
7 barriers encountered by persons with disabilities in applicant for-profit, non-profit and
8 public organizations throughout the Commonwealth that are part of the arts, humanities and
9 interpretive sciences sector.

10 (b) The fund shall be held in trust by the Office on Disability exclusively for the purposes
11 established in section (a). The fund shall be administered by the Office on Disability, which will
12 serve as treasurer and custodian of the fund and shall have the custody of its monies and
13 securities, in consultation with the ACE Commission established in section (c). As custodian of

the fund, the Office on Disability may accept monetary donations to the fund from individuals, organizations, associations, non-profits, businesses, estates, foundations or other entities. In addition to the funds referenced above, the fund shall also include: (i) revenue from appropriations or other money authorized by the general court and specifically designated to the fund; and (ii) all other monies credited to or transferred to the fund from any other fund or source. The Office on Disability shall seek to maximize fund revenues through federal monies, matching funds and grants. The comptroller may certify amounts for payment in anticipation of expected receipts; provided, however, that no expenditure shall be made from the fund that shall cause the fund to be deficient at the close of a fiscal year. Amounts credited to the fund shall be available for expenditure, without further appropriation, by the Office on Disability, and any money remaining in the fund shall not revert to the general fund and may be used in subsequent fiscal years for investments including, but not limited to, supporting capital improvements and projects to improve programmatic access and remove barriers encountered by persons with disabilities in applicant for-profit, non-profit and public arts, humanities and interpretive science organizations throughout the Commonwealth.

(c) Notwithstanding any general or special law to the contrary, the Office on Disability shall establish a pilot program for gateway cities and rural communities that are currently seeking to improve access to the arts and cultural economy. This program shall be called the Accessibility in the Creative Economy (ACE) Pilot Program.

(d) There shall be established a new commission to be known as the ACE Commission consisting of a majority of individuals with disabilities and individuals with experience advocating on behalf of individuals with disabilities. The board shall

36 consist of 3 persons appointed by the Governor; 2 persons appointed by the Speaker of
37 the House of Representatives; 1 person appointed by the minority leader of the House of
38 Representatives; 2 persons appointed by the Senate President; 1 person appointed by the
39 minority leader of the State Senate; the Director of the Office on Disability or a designee; the
40 Managing Director of Open Door Arts or a designee; 1 person from the Disability Law Center;
41 and the Executive Director of Mass Cultural Council or a designee.

42 (e) The ACE Commission shall make recommendations to the Office on Disability on the
43 criteria for making grants available to communities and organizations. Eligible uses shall
44 include, but not be limited to: (i) training or comprehensive support for for-profit, non-profit and
45 public organizations providing creative services; (ii) individualized consulting services related to
46 improving accessibility that are created and led by members of the disabilities community; (iii)
47 capital improvements specifically dedicated to improving access or removing barriers
48 encountered by persons with disabilities in applicant facilities, including but not limited to
49 increasing both physical and programmatic access through the addition of features such as
50 ramps, elevators, power lifts and limited use/limited application elevators (LULAs), signage,
51 Assistive Listening Systems, curb cuts, adult changing tables, or any other features that are
52 designed to improve architectural access or programmatic access; (iv) planning for updating or
53 creating a self-evaluation or transition plan as required under the Administrative Requirements of
54 Title II of the ADA and section 504 of the Rehabilitation Act and recommended under Title III
55 of the ADA; and (v) in selecting applicant organizations for capital improvements or
56 programmatic projects, the ACE Commission shall award funding to organizations that are
57 located or conduct

the majority of their business in the Commonwealth. Grants will be awarded on a competitive basis to projects that demonstrate real and tangible positive impacts to persons with disabilities. The distribution of grants from the fund shall consider racial diversity and equity, geographic diversity, and programmatic diversity within the cultural sector.

(f) The ACE Commission shall submit an annual report to the Director of the Office on Disability, the House and Senate Committees on Ways and Means, the Joint Committee on Tourism, Arts and Cultural Development, and the Joint Committee on Children, Families and Persons with Disabilities no later than December 31 detailing the expenditure of the funds, including the

amount of assistance provided to qualified organizations and a list of grant recipients. Said report shall also include the unexpended balance of the fund. This report shall be considered a public record.

(g) The ACE Commission shall be established no later than December 1, 2026.